

		Notwithstanding Plaintiff's repeated efforts to resolve his bodily injury claim in good faith, Defendant Progressive has wholly failed to offer any settlement or payment for Plaintiff's substantial medical expenses, lost wages, or pain and suffering, all of which fall squarely within the scope of the UM/UIM bodily injury coverage. Plaintiff has complied with all requirements of the policy, including submitting to the contractual arbitration process, yet Progressive has continued to act in bad faith by refusing to settle Plaintiff's bodily injury claim. (<i>Id.</i>, Exh. 1, ¶ 30.) It is not clear from this sentence whether Plaintiff is engaged currently in arbitration or whether Plaintiff is <i>willing</i> to engage in arbitration. Further, the Complaint is unverified and therefore, does not constitute evidence. At best, the Complaint estops Plaintiff from making assertions inconsistent with the Complaint. It is not sufficient, by itself, to establish that Plaintiff is engaged in arbitration with Defendant Progressive. Finally, Defendant Progressive fails to provide evidence as to what issues have been submitted to arbitration and the Complaint is silent on this issue. Therefore, there the court cannot determine whether the arbitration proceedings are "of a controversy" that "is an issue involved in an action or proceeding pending before [this] court." (Code Civ. Proc., § 1281.4.) Defendant Progressive has failed to establish that Plaintiff has been ordered to engage in arbitration or is engaged in arbitration of a controversy that is an issue before this court. Accordingly, the court will deny the motion. The court clerk shall give notice of this ruling.
4	Sunday vs. Kazweeny 30-2025-01476760	<u>Demurrer</u> Defendants eXp Realty of Southern California, Inc.'s; Jason D. Crawford's; Anita Cruz's; and Michale Scott

		Medibles' Demurrer to Plaintiffs' First Amended Complaint is taken OFF CALENDAR pursuant to the Notice of Withdrawal of Hearing on Defendants' eXp Realty of Southern California, Inc., Jason D. Crawford, Anita Cruz, and Michael Scott Mendibles' Demurrer to Plaintiffs' First Amended Complaint (ROA #165) filed August 17, 2026.
5	Amirmokri vs. American Family Connect Insurance Agency, Inc. 30-2025-01491402	<u>Motion to Substitute for Party</u> Defendant Carfax, Inc. is granted leave to file sur-reply papers in response to Brad A. Mokri's reply papers. Any sur-reply shall be filed and served on or before September 4, 2026, and any sur-reply shall not exceed 10 pages. Plaintiff Behad Amirmokri's and Brad A. Mokri's Motion to Continue Action and to Substitute Successor in Interest shall be taken under submission on September 7, 2026. <u>Pending Motion</u> Plaintiff Behad Amirmokri and Brad A. Mokri move that this action continue notwithstanding the death of Plaintiff Behzad Amirmokri and that Brad A. Mokri be substituted as plaintiff in place of the decedent. <u>Standard to Continue Action After Party's Death</u> Civil Procedure Code section 377.20 provides that "[e]xcept as otherwise provided by statute, a cause of action for or against a person is not lost by reason of the person's death, but survives subject to the applicable limitations period." (Code Civ. Proc., § 377.20, subd. (a).) A cause of action that survives the death of a plaintiff passes to "the decedent's successor in interest." (Code Civ. Proc., § 377.30.) "Decedent's successor-in-interest" means "the beneficiary of the decedent's estate or other successor in interest who succeeds to a cause of action or to a particular item of the property that is the subject of a cause of action." (Code Civ. Proc., § 377.11.)